Cour Pénale Internationale
International Criminal Court

Case Information Sheet

Situation in Mali

The Prosecutor v. Al Hassan Ag Abdoul Aziz Ag Mohamed Ag Mahmoud

ICC-01/12-01/18

ICC-PIDS-CIS-MAL-02-005/19_Eng
Updated: June 2019

Al-Hassan Ag Abdoul Aziz Ag Mohamed Ag Mahmoud

Suspected of crimes against humanity and war crimes allegedly committed in Timbuktu, Mali, between 2012 and 2013. Confirmation of charges hearing scheduled for 8 July 2019. In ICC custody.



Date of birth: 1977
Place of birth: Timbuktu, Mali
Nationality: Malian
Title: Alleged member of Ansar Eddine, *de facto* chief of the Islamic police, involved in the Islamic court's work
Warrant of arrest: 27 March 2018
Transfer: 31 March 2018
Initial appearance : 4 April 2018
Confirmation of charges hearing: scheduled for 8 July 2019

Charges:

Pre-Trial Chamber I considers that there are reasonable grounds to believe that, under article 25(3)(a) or (b) of the Rome Statute, Mr Al-Hassan is criminally responsible for:

- Crimes against humanity allegedly committed in Mali, in the context of a widespread and systematic attack against the civilian population, between April 2012 and January 2013:
  - Torture (article 7(1)(f))
  - Rape and sexual slavery (article 7(1)(g))
  - Persecution (article 7(1)(h))
  - Other inhumane acts (article 7(1)(k))

- War crimes in the context of an armed conflict not of an international nature allegedly committed in Mali between April 2012 and January 2013:
  - Outrages upon personal dignity (article 8(2)(c)(ii))
  - Passing of sentences without previous judgement pronounced by a regularly constituted court affording all judicial guarantees which are generally recognized as indispensable (article 8(2)(c)(iv))
  - Intentionally directing attacks against buildings dedicated to religion and historic monuments (article 8(2)(e)(iv)
  - Rape and sexual slavery (article 8(2)(e)(vi))

Alleged crimes (non-exhaustive list)

Pre-Trial Chamber I found that there are reasonable grounds to believe that:

- Between April 2012 and January 2013, in furtherance of a policy designed by the armed groups Al-Qaida in the Islamic Maghreb ("AQIM") and Ansar Eddine, a widespread and systematic attack within the meaning of article 7(1) of the Statue was carried out against the civilian population, including by torturing, raping and persecuting members of the civilian population of Timbuktu, in Mali.
- A non-international armed conflict began in January 2012 and remained ongoing in Mali throughout the period of the alleged events. During that period, from the beginning of April 2012 to 17 January 2013, the city of Timbuktu was allegedly under the control of the armed groups Al-Qaida in the Islamic Maghreb ("AQIM") and Ansar Eddine, a primarily Tuareg movement associated with AQIM. Mr Al Hassan is alleged to have played a prominent role in the commission of crimes and religious and gender-based persecution by those armed groups against the civilian population of Timbuktu.
- Mr Al-Hassan was a member of Ansar Eddine and *de facto* chief of the Islamic police.
- Mr Al-Hassan was involved in the work of the Islamic court in Timbuktu and participated in executing its decisions.
- Mr Al-Hassan took part in the destruction of mausoleums of Muslim saints in Timbuktu using Islamic police forces in the field, and participated in the policy of forced marriages which victimized the female inhabitants of Timbuktu and led to repeated rapes and sexual enslavement of women and girls.

Modes of liability

The Chamber finds reasonable grounds to believe that Mr Al-Hassan bears criminal responsibility for:

(i) the commission of the crimes individually, jointly with another or through another person (article 25(3)(a)); or

(ii) ordering, soliciting or inducing the commission of the crimes (article 25(3)(b))

Key judicial developments

Referral and opening of the investigation

On 13 July 2012, the Government of Mali refered the situation in Mali since January 2012 to the ICC. After conducting a preliminary examination of the situation, the ICC Prosecutor concluded, on 16 March 2013, that there is reasonable basis to believe that crimes under the ICC's jurisdiction have been committed in Mali, since January 2012, and decided to open an investigation in this situation.

Warrant of arrest

The warrant of arrest in this case was requested by the Prosecutor on 20 March 2018 and subsequently issued by Pre-Trial Chamber I on 27 March 2018.

Transfer and initial appearance

On 31 March 2018, Mr Al Hassan was surrendered to the ICC by the Malian authorities and arrived at the Court's detention centre in the Netherlands.

On 4 April 2018, Mr Al Hassan appeared before the single judge of Pre-Trial Chamber I, judge Marc Perrin de Brichambaut, in the presence of the Prosecutor and the Defence. Mr Al Hassan was represented by his Duty Counsel, Yasser Hassan. The Single Judge verified the identity of the suspect, and ensured that he was clearly informed of the crimes he is alleged to have committed and of his rights under the Rome Statute of the ICC in a language he fully understands and speaks, in this case, Arabic.

Confirmation of charges hearing

The beginning of the confirmation of charges hearing in respect of Mr Al Hassan is scheduled for 8 July 2019. The purpose of the confirmation of charges hearing is to determine whether there is sufficient evidence to establish substantial grounds to believe that the person committed each of the crimes charged. If the charges are confirmed, the case will be transferred to a Trial Chamber, which will conduct the subsequent phase of the proceedings: the trial.

Composition of Pre-Trial Chamber I
Judge Péter Kovâcs, Presiding Judge
Judge Marc Perrin de Brichambaut
Judge Reine Adélaïde Sophie Alapini-Gansou

Representation of the Office of the Prosecutor
Fatou Bensouda, Prosecutor
James Stewart, Deputy Prosecutor

Defence Counsel
Melinda Taylor
Marie-Hélène Proulx

Legal Representatives of the Victims
Seydou Doumbia
Mayombo Kassongo
Fidel Nsita Luvengika